

STATE OF WASHINGTON
DEPARTMENT OF SOCIAL AND HEALTH SERVICES
DIVISION OF CHILD SUPPORT (DCS)

Income Withholding For Support Cover Letter

42 U.S.C. 666(b), RCW 26.23.060, and RCW 74.20A.080



TO:
ATOMS FAMILY FARMS
17 OLD MOUNTAIN RD
GOLDENDALE WA 98620-2928

DATE: April 10, 2023

RE: ZACKARIAH BENNETT

AKA: ZACKARIAH J BENNETT

AKA:

SSN: [REDACTED]

ACCOUNT NUMBER: IN 5486191

CASE NUMBER: 2073961

The Division of Child Support (DCS) is collecting child support from the noncustodial parent (parent) named above.

The enclosed order / notice: ☒ **Is a new order / notice.** ☐ **Amends (changes) a previously served order / notice.**
☐ **Terminates (stops) withholding.** ☐ **Is a one-time lump-sum payment request.**

If you are located outside Washington State and the requirements listed in this letter conflict with the laws of the state where the parent works, follow the laws of the state where the parent works.

If the parent has more than one case with DCS, then DCS sends an order / notice for each case number. See page 3 for information about multiple orders / notices for one parent.

DCS summarized your responsibilities below. See pages 2 and 3 for more details. If you employ or otherwise pay the parent for personal or contracted services, you must comply with the items marked below.

☒ Immediately begin withholding \$ 648.00 per month for case number 2073961 from all of the parent's disposable earnings. See page 2 for information about disposable earnings.

1. Do not withhold more than 50 percent of the parent's disposable earnings in any pay period.

Note: If you receive more than one order / notice from DCS for the same parent, add all the amounts together to get the total amount to withhold from the parent's disposable earnings. The withholding amount for multiple orders / notices is limited to 50 percent in any pay period.

2. If you do not pay the parent on a monthly basis, see the enclosed order / notice for alternative withholding methods.

Note: If you pay on a **weekly** or **bi-weekly** schedule, DCS prefers that you withhold equal payments as follows if your payroll system allows.

For weekly payroll: Withhold from the first **four** paydays each month (amount to withhold divided by 4).

For bi-weekly payroll: Withhold from the first **two** paydays each month (amount to withhold divided by 2).

You may skip the extra payday in those months with a fifth weekly payday or third bi-weekly payday **only if the full monthly withholding amount has been remitted.**

Note: For daily payroll: withhold **up to** 50% of wages each day until the weekly pay period amount is withheld each work week.

3. Include the parent's name, case number and account number (listed above) on all payments and correspondence.
4. Effective January 1, 2019, most employers and businesses must send all support payments to DCS by one of the following methods **within seven days** of withholding.
 - a. Online at: <https://secureaccess.wa.gov>.
 - b. Repetitive Automated Clearing House (ACH) Debit. More information at: <https://www.dshs.wa.gov/sites/default/files/publications/documents/22-069.pdf>
 - c. Electronic Funds Transfer / Electronic Data Interchange (EFT / EDI).
 - (1) You can find formatting information at: <https://www.dshs.wa.gov/sites/default/files/ESA/cc/documents/UserGuide.pdf>
 - (2) Remit EFT / EDI payments to: Bank Routing number 021052053, checking account number 46922337.



d. For more information about paying electronically, call 800-468-7422.

Exception - You may pay by mail if all of the following are true:

- If you have fewer than ten employees or contractors, **and**
- Only one employee or contractor with child support income withholding orders, **and**
- You do not use a payroll processor or your payroll processor cannot pay electronically, **and**
- You are not required by the Department of Revenue to file and pay taxes electronically.

Mail payment **within seven days** of withholding to:

WASHINGTON STATE SUPPORT REGISTRY
PO BOX 45868
OLYMPIA WA 98504-5868

- ☐ Enroll the parent's children in a medical insurance program, if available. See the enclosed **National Medical Support Notice** for details and requirements.

Instructions

If DCS included one of the answer forms listed below, you also must answer the enclosed order / notice within 20 days. If DCS did not include one of the answer forms, you do not need to answer the enclosed order / notice. If you:

1. **Do not employ or have never employed** the parent, complete and return the enclosed **Employment Termination Notice** form.
2. **Employ** the parent, complete and return the enclosed **Answer to Order / Notice of Income Withholding for Support**.

If the order / notice is for a one-time lump-sum payment, do not withhold more than 50 percent of the parent's net pay for a pay period. If the lump-sum payment totals more than 50 percent of the parent's net pay, withhold 50 percent of the parent's net pay until you have withheld the full lump-sum amount.

If DCS enclosed a **National Medical Support Notice**, you must respond as required by the notice.

If the parent leaves your employment, call DCS at the number listed below or send DCS (if enclosed) the **Employment Termination Notice** form.

Call S. GRAF at (206) 341-7000 if:

1. The parent participates in a work release program.
2. You receive a withhold order / notice from another court or child support agency.
3. You have any questions.

Visit the DCS web site at: www.dshs.wa.gov/esa/division-child-support for more information about the child support enforcement program. Any over-collections which may occur in error will be refunded to the employee by DCS.

Frequently Asked Questions

Does the enclosed order / notice apply to me? The order / notice applies to all employers except Indian tribes, tribally-owned businesses, or Indian-owned businesses on a reservation. If you are a tribe, tribally-owned business, or Indian-owned business located on a reservation and choose to honor the enclosed order / notice, DCS appreciates your voluntary compliance. See the enclosed answer form.

Does the enclosed order / notice have priority over other processes? Yes. An order / notice to withhold and deliver for child support has priority over other wage assignments, garnishments or attachments, with the possible exception of those issued by the IRS.

Can DCS require wage withholding when the parent is not behind in support payments? Yes.

What qualifies as earnings? Earnings means (also see disposable earnings below):

1. Compensation (including payments to independent contractors) paid or payable for personal services. This includes wages, salaries, commissions, bonuses, or pay in other forms.
2. All gains from capital, labor, or both combined, and periodic payments for retirement, pensions, and insurance plans.

What qualifies as disposable earnings? Disposable earnings are earnings remaining after deductions required by law.

1. Required deductions **include** federal, state, and local income taxes, FICA taxes, mandatory pension plan contributions, Paid Family Medical Leave, and mandatory union dues.

STATE OF WASHINGTON
DEPARTMENT OF SOCIAL AND HEALTH SERVICES
DIVISION OF CHILD SUPPORT (DCS)

Modification or Adjustment Review Findings Notice



TO: ZACKARIAH JEREMIAH BENNETT
17 OLD MOUNTAIN RD
GOLDENDALE WA 98620-2928

RE: MELVINA MANNING

CASE NUMBER: 2073961

The Division of Child Support (DCS) took the action marked on this form for the child support order in this case. The order was entered on 09/20/2013, by KING.

1. ☐ DCS reviewed the support order. The case meets minimum requirements for DCS to proceed.
 - a. ☐ DCS will refer the case to either a prosecutor's or Attorney General's office for court action. DCS will do so 10 days after the date of this notice. The prosecutor's or Attorney General's office will notify you of the court action. You may contest DCS's action to modify the support order in your answer to the notification of the court action.
 - Both parties to the support order must exchange income information. Court action to modify the order may result in release of a party's address to the other party. If you are the children's custodian and do not want your address released, contact DCS at the address or telephone numbers listed on page 2.
 - b. ☐ DCS will ask the Office of Administrative Hearings to modify the administrative support order. DCS will do so 30 days after the date of this notice.
 - c. ☐ Both parties to the support order agreed to DCS's proposed modification. DCS referred the case to a court or the Office of Administrative Hearings to enter the order.
 - d. ☐ The existing support order does not require the noncustodial parent to provide health insurance for the children.
 - (1) ☐ DCS will refer the case to a prosecutor's or Attorney General's office for court action. DCS will do so 10 days after the date on this notice. The prosecutor's or Attorney General's office will notify you of the court action. You may contest DCS's action to modify the support order in your answer to the notification of the court action.
 - By law, both parties to the support order must exchange income information. Court action to modify the order may result in release of a party's address to the other party. If you are the children's custodian and do not want your address released, contact DCS at the address or telephone numbers listed on page 2.
 - (2) ☐ DCS will ask the Office of Administrative Hearings to modify the administrative support order. DCS will do so 30 days after the date of this notice.
2. ☐ DCS reviewed the support order and stopped the review. The difference between the existing support amount and the amount DCS calculated does not meet the minimum change required by DCS regulations. DCS regulations require a change of at least 15 percent of the current support amount and at least \$100.00 per month. This change also must represent at least a \$2,400.00 change over the remaining life of the support order. DCS used the enclosed **Washington State Child Support Schedule** worksheets to calculate the support amount.
3. ☐ DCS reviewed the support order based on the incarceration of the noncustodial parent and stopped the review. The difference between the existing support amount and the amount DCS calculated does not meet the minimum change required by DCS regulations. DCS regulations require a change of at least \$100.00 per month.

This change also must represent at least a \$2,400.00 change over the remaining life of the support order. DCS used the enclosed **Washington State Child Support Schedule** worksheets to calculate the support amount.

4. ☒ DCS decided not to review the support order because:
- a. ☐ A court decided that a review is not in the children's best interest.
 - b. ☐ Based upon a good cause claim, a review is not in the children's best interest.
 - c. ☐ The requester withdrew the review request.
 - d. ☐ DCS does not know the location of one party to the support order. A modification action requires that DCS tell both parties about the action.
 - e. ☐ The noncustodial parent is not currently employed.
 - f. ☐ DCS is not collecting current support for children named in the order who are less than 16.5 years old.
 - g. ☐ The children no longer receive public assistance and no individual party asked to continue the review.
 - h. ☐ Three years have not passed since the last review or modification occurred.
 - i. ☐ Other:
5. ☒ Other: We received an incomplete modification review request packet from Zackariah Bennett. We also need the financial and other forms listed on the front page of the Review Request form.

NOTE: If DCS marked box 1, 2, 3, or 4 and you do not agree with the decision, you may contest the review findings. If you want to contest the findings, complete the enclosed form. Return the completed form to DCS at the address listed below. If DCS already referred the case and you contest the findings, a court or the Office of Administrative Hearings will provide an opportunity to contest the findings.

6. ☐ DCS held a Modification Conference. The case does not meet the criteria for further review. You do not have the right to another Modification Conference.

You may file an action and ask a court to modify the support order at any time. If you do so, you must serve notice of the court action on the other party to the support order. If the children named in the support order receive public assistance, you also must serve notice of the court action on the Prosecuting Attorney's office in the county where you file the action. You must serve these notices at least 20 days before the hearing. You can obtain the legal documents necessary to modify the support order on-line at: www.courts.wa.gov/forms or by contacting the local court facilitator.

If you have been granted Good Cause Level B by the Department of Social and Health Services, you:

- 1. Do not have to cooperate with DCS on your child support case.
- 2. Do not have to provide information for the purposes of modifying this order.
- 3. Do not have to participate in hearings about your case.
- 4. Do not have to respond to anything DCS sends you.

DCS will send you documents during any modification or adjustment process to keep you informed. A court or the Office of Administrative Hearings may modify your order even if you do not participate. You may choose to participate any time.

April 10, 2023

DATE

S GRAF

AUTHORIZED REPRESENTATIVE
DIVISION OF CHILD SUPPORT

If you have questions, contact:
DIVISION OF CHILD SUPPORT
PO BOX 11520
TACOMA WA 98411-5520

Within Seattle calling area (206) 341-7000

Outside Seattle calling area (800) 526-8658

TTY/TDD services available for the speech or hearing impaired.

Visit our web site at: www.dshs.wa.gov/esa/division-child-support

No person because of race, color, national origin, creed, religion, sex, age, or disability, shall be discriminated against in employment, services, or any aspect of the program's activities. This form is available in alternative formats upon request.



TO:
ZACKARIAH JEREMIAH BENNETT
17 OLD MOUNTAIN RD
GOLDENDALE WA 98620-2928

Withholding Notice

The Division of Child Support (DCS) served a copy of the enclosed notice or order on your employer or other person or organization that holds assets for you. The enclosed notice or order:

1. Requires the employer or other person or organization to start withholding support from your wages, income, benefits, or assets.
2. Shows the amount of support the employer or other person or organization must withhold from your wages, income, benefits, or assets.

DCS records show that you owe a total of \$ 38,843.33 for past-due support and \$ 148.00 for monthly current support. If you have more than one case with DCS, the amounts reflect the totals from all cases.

Under RCW 26.23.100 or RCW 74.20A.200 and WAC 388-14A-6400, you may contest the enclosed notice or order if there is a mistake of fact. You may do so at any time. If you believe that DCS used incorrect information, contact the DCS Representative named on the notice or order. If you and the DCS Representative cannot resolve the issue, you may do either of the following:

1. File an action in the state or tribal court that entered your support order. If you file a court action, you must serve notice of the action on the Attorney General's Office and the other party to your support order.
2. Ask DCS for a Conference Board. A Conference Board is less formal than a court action. If you want a Conference Board, contact DCS at the telephone numbers or address listed on the enclosed notice or order. Use the toll-free telephone number for long distance calls only.

DCS must comply with a decision of a court or Conference Board.

If you do not comply with your support order, DCS may ask licensing authorities to suspend or not renew your licenses. You may contact DCS at the address or telephone numbers listed on the enclosed notice or order to negotiate a change in the amount we are collecting each month to pay your past-due support (if any).

Certain assets are exempt from DCS collection actions. For example, 50 percent of your disposable earnings are exempt. Disposable earnings are the net income left after mandatory deductions such as state, federal, local, social security, and medicare taxes.

If you have more than one case, DCS distributes payments to multiple cases using a formula (algorithm) that calculates the portion of the payment to apply to each case. See WAC 388-14A-5000 through 5007.

You may receive credit towards your support obligation if you enroll your children as dependents for either Labor and Industries or Social Security benefits. Please contact your Labor and Industries or Social Security case worker to ask about these programs. Notify your Support Enforcement Officer if your children begin receiving benefits because of your disability.

You may receive credit towards your support obligation if an apportionment of your veteran's benefits is paid on behalf of your children. Notify your Support Enforcement Officer if an apportionment of your veteran's benefits is being paid on behalf of your children.

No person because of race, color, national origin, creed, religion, sex, age, or disability, shall be discriminated against in employment, services, or any aspect of the program's activities. This form is available in alternative formats upon request.